

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lesley Henry	Team: Team # 5	CCRB Case #: 201007008	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 05/23/2010 9:00 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 11/23/2011	Precinct: 105		
Date/Time CV Reported Sun, 05/23/2010 11:39 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 05/23/2010 11:39 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jude Reimbeau	01431	925976	105 PCT
2. POM Richard Tarver	23842	943860	105 PCT
3. POM George Farley	22069	941731	105 PCT
4. POM Brian Faller	28009	943489	105 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Dayn Johnson	02672	940919	105 PCT
2. POM Anil Jacob	22372	936801	105 PCT
3. POM Andrew Fitzgerald	10988	941757	105 PCT
4. POM Christopher Dantonio	02670	941612	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM George Farley	Force: PO George Farley pointed his gun at § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . POM Brian Faller	Force: PO Brian Faller pointed his gun at § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . POM Richard Tarver	Force: PO Richard Tarver pointed his gun at § 87(2)(b) and § 87(2)(b)	C . Exonerated
D . POM George Farley	Discourtesy: PO George Farley spoke obscenely and/or rudely to § 87(2)(b)	D . Unsubstantiated
E . POM Brian Faller	Discourtesy: PO Brian Faller spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)	E . Unsubstantiated
F . POM George Farley	Force: PO George Farley used physical force against § 87(2)(b)	F . Exonerated
G . POM Brian Faller	Force: PO Brian Faller used physical force against § 87(2)(b)	G . Exonerated
H . POM George Farley	Abuse: PO George Farley searched § 87(2)(b)	H . Unsubstantiated
I . POM Richard Tarver	Abuse: PO Richard Tarver searched § 87(2)(b)	I . Substantiated

Officer(s)	Allegation	Investigator Recommendation
J . SGT Jude Reimbeau	Abuse: Sgt. Jude Reimbeau authorized the search of the car in which § 87(2)(b) and § 87(2)(b) were occupants.	J . Exonerated
K . SGT Jude Reimbeau	Abuse: Sgt. Jude Reimbeau damaged § 87(2)(b) s property.	K . Unsubstantiated

Case Summary

On May 23, 2010, § 87(2)(b) filed a complaint with the CCRB via the call processing system (encl. 7A-C). On May 24, 2010, § 87(2)(b) filed a duplicate complaint via the online website (encl. 6A-C).

On May 23, 2010, at approximately 9:00 p.m., officers from the 105th Precinct stopped § 87(2)(b) and § 87(2)(b) in front of § 87(2)(b) in Queens. The following allegations resulted:

- **Allegation A – Force:** PO George Farley pointed his gun at § 87(2)(b) and § 87(2)(b), it is recommended that **Allegation A be exonerated.**
- **Allegation B – Force:** PO Brian Faller pointed his gun at § 87(2)(b) and § 87(2)(b), it is recommended that **Allegation B be exonerated.**
- **Allegation C – Force:** PO Richard Tarver pointed his gun at § 87(2)(b) and § 87(2)(b), it is recommended that **Allegation C be exonerated.**
- **Allegation D – Discourtesy:** PO George Farley spoke obscenely and/or rudely to § 87(2)(b), it is recommended that **Allegation D be unsubstantiated.**
- **Allegation E – Discourtesy:** PO Brian Faller spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b), it is recommended that **Allegations E be unsubstantiated.**
- **Allegation F – Force:** PO George Farley used physical force against § 87(2)(b), it is recommended that **Allegation F be exonerated.**
- **Allegation G – Force:** PO Brian Faller used physical force against § 87(2)(b), it is recommended that **Allegation G be exonerated.**
- **Allegation H – Abuse:** PO George Farley searched § 87(2)(b) § 87(2)(g), it is recommended that **Allegation H be unsubstantiated.**
- **Allegation I – Abuse:** PO Richard Tarver searched § 87(2)(b) § 87(2)(g), it is recommended that **Allegation I be substantiated.**
- **Allegation J – Abuse:** Sgt. Jude Reimbeau authorized the search of the car in which § 87(2)(b) and § 87(2)(b) were occupants. § 87(2)(g), it is recommended that **Allegation J be exonerated.**
- **Allegation K – Abuse:** Sgt. Jude Reimbeau damaged § 87(2)(b)'s property. § 87(2)(g), it is recommended that **Allegation K be unsubstantiated.**

Results of Investigation

Civilian Statement(s)

Complainant: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male, § 87(2)(b) with black hair and brown eyes. § 87(2)(b)

CCRB Testimony

On June 9, 2010, § 87(2)(b) provided a telephone statement to the CCRB § 87(2)(g) (encl. 8). On June 21, 2010, § 87(2)(b) was interviewed at the CCRB (encl. 9A-B). On May 23, 2010, § 87(2)(b) drove a black 2006 BMW M5 to § 87(2)(b)'s home. He was accompanied by his friends, § 87(2)(b) and § 87(2)(b). The group arrived at § 87(2)(b)'s home and § 87(2)(b) exited the vehicle. § 87(2)(b) entered the driver's seat and § 87(2)(b) entered the front passenger seat, and they prepared to drive away from the location. A marked patrol car pulled in front of the vehicle and another marked patrol car pulled up behind and signaled with sirens and lights for the vehicle to stop in front of § 87(2)(b) in Queens.

Nine additional marked patrol cars arrived at the location and numerous uniformed officers exited and issued various commands, which included, "Shut the ignition off" and "Exit the vehicle." A white or Hispanic male officer, whom § 87(2)(b) could not further describe, approached § 87(2)(b) on the driver's side with his gun pointed and banged on the window and stated, "Open the window or I'm going to break the fucking door." This officer was identified through investigation as PO George Farley. § 87(2)(b) opened the door and PO Farley pulled him by the arms out of the vehicle. Another officer, identified through investigation as PO Brian Faller removed § 87(2)(b) from the vehicle, threw him to the ground and placed him in handcuffs. § 87(2)(b) did not appear to have been injured by the action.

Approximately four unidentified officers, whom § 87(2)(b) could not describe, searched the vehicle and removed the back seat. The officers damaged the vehicle in the process as an approximately 10 inch scratch on the paint appeared over the gas tank. The steering wheel, mats and back seats were also ripped. Two additional unidentified male officers, who were either white or Hispanic, searched the trunk of the vehicle.

§ 87(2)(b) approached an officer he identified as "SGT Rainbow," whom he described as a white male, 5'6" tall, and 200 lbs. This officer was identified through investigation as Sgt. Jude Reimbeau. § 87(2)(b) told Sgt. Reimbeau that he owned the vehicle and that the officers had damaged it. Sgt. Reimbeau stated that the officers' had received a call; however, he did not provide any further information regarding the content of the call.

Photographs

On May 24, 2010, § 87(2)(b) took photographs of alleged damage done to his vehicle during a vehicle search by officers from the 105th Precinct. The photographs depict a scratch along his gas tank, a removed back seat, scratches to the steering wheel and a torn mat by the driver's seat (encl. 11).

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male, § 87(2)(b), with black hair and brown eyes. § 87(2)(b)

- **CCRB Testimony**

On June 9, 2010, § 87(2)(b) provided a telephone statement § 87(2)(g) (encl. 12). On June 21, 2010, § 87(2)(b) was interviewed at the CCRB (encl. 13A-B). On May 23, 2010, at approximately 9:30 p.m., § 87(2)(b) and § 87(2)(b) accompanied § 87(2)(b) to Queens to visit § 87(2)(b). § 87(2)(b) was visiting the U.S. from § 87(2)(b) and wanted to see the county of Queens, New York for the first time. § 87(2)(b) was not home when the group arrived and they waited for her for approximately fifteen minutes.

§ 87(2)(b) arrived and § 87(2)(b) exited the vehicle and talked with her in her driveway. § 87(2)(b) entered the driver's seat and § 87(2)(b) remained in the back seat. § 87(2)(b) informed § 87(2)(b) that they were going to leave and he turned the ignition. A marked patrol car blocked his path. § 87(2)(b) described the driver of the patrol car as a white male, 5'7" tall, 200 lbs, with black hair and approximately 38-45 years old. This officer was identified through investigation as PO Brian Faller. He described the passenger of the patrol car as a white male, 5'11" tall, 180 lbs, with black hair and approximately 38-45 years old. This officer was identified through investigation as PO George Farley. Another marked patrol car pulled up behind § 87(2)(b) and indicated with a siren for § 87(2)(b) to stop.

Officers Faller and Farley exited their patrol car with their guns pointed at § 87(2)(b) and § 87(2)(b) and shouted, "Put your fucking hands in the air." PO Farley approached and told § 87(2)(b) "Open the fucking door." PO Farley opened the door, threw § 87(2)(b) on the ground and handcuffed him. § 87(2)(b) was not injured. PO Farley placed § 87(2)(b) to stand behind a parked Chevrolet van and asked him, "Where's the weapons?" § 87(2)(b) said that they did not have any weapons.

PO Farley removed § 87(2)(b)'s wallet from his pocket and searched for his license which he did not find. He recorded § 87(2)(b)'s name from a gym membership card. PO Farley pulled § 87(2)(b) from the car, placed him on the ground and handcuffed him. § 87(2)(b) observed an officer whom he described as a black male, 5'7" tall, 175 lbs, with a bald head, search § 87(2)(b) pockets and place him in a standing position. This officer was identified through investigation as PO Richard Tarver. PO Tarver and approximately three additional unidentified officers searched the front seats, back seats, glove compartment and trunk of the vehicle. § 87(2)(b) did not know whether the vehicle had been damaged.

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black female.

Telephone Statement

On June 23, 2010, § 87(2)(b) provided a telephone statement to the CCRB (encl. 15). On May 23, 2010, at approximately 9:00 p.m., § 87(2)(b)'s two friends, identified through investigation as § 87(2)(b) and § 87(2)(b) were seated in § 87(2)(b)'s vehicle parked across the street from § 87(2)(b)'s home. A marked patrol car blocked the vehicle at the entrance of the block and two police officers, identified through investigation as PO Faller and PO Farley, exited the vehicle with their guns pointed at the car. Approximately three additional marked patrol cars entered the block from the opposite corner. The officers shouted for § 87(2)(b) and § 87(2)(b) to turn the car off and put their hands out of the window.

Sgt. Reimbeau informed § 87(2)(b) that the officers had received an anonymous call stating that three men were in a vehicle showing a gun. Two officers searched the trunk and approximately two officers searched the inside of the vehicle. § 87(2)(b) stated the officers “messed up” the car; however, she did not provide any specific details regarding the damage.

On June 29, 2010 and October 4, 2010, § 87(2)(b) missed her scheduled appointments without calling to cancel or reschedule and was uncooperative with the CCRB in providing a sworn statement.

Attempts to Contact Civilians

§ 87(2)(b) was visiting the United States from § 87(2)(b) and left the country shortly after the incident. § 87(2)(b) did not have any contact information for him. Between June 25, 2010 and January 18, 2011, the undersigned investigator placed five phone calls to § 87(2)(b) § 87(2)(b) identified through the SPRINT report as the 911 caller; messages were left. On September 29, 2010 and January 3, 2011, a letter was mailed to § 87(2)(b) that was not returned to the CCRB by the United States Postal Service.

NYPD Statement(s):

Subject Officer: PO GEORGE FARLEY

- PO Farley is a § 87(2)(b) old white male, § 87(2)(b), with brown hair and eyes. On May 23, 2010, PO Farley worked in uniform from 3:00 p.m. until 11:35 p.m. with PO Faller assigned to sector patrol (CE), and assigned to marked patrol car 1706.

Memo Book

PO Farley’s memo book entries indicated that at 9:30 p.m., he received a reported call that four men were in possession of a gun. PO Farley stopped § 87(2)(b) in regards to the report and prepared a stop, question and frisk report (encl. 16A-C).

Stop, Question and Frisk Report

The stop, question and frisk report indicates that that PO Farley stopped § 87(2)(b) because he fit a provided description and made furtive movements. The report indicates that § 87(2)(b) was not frisked or searched (encl. 17A-B).

CCRB Testimony

On September 20, 2010, PO George Farley was interviewed at the CCRB (encl. 20A-B). On May 23, 2010, at approximately 9:30 p.m., PO Farley and PO Faller responded to § 87(2)(b) in Queens in response to a reported incident involving four males in a vehicle in possession of guns. PO Farley observed the vehicle parked at the location. PO Farley exited the passenger seat and pointed his firearm at the ground out of fear for his safety, and commanded the driver, whom he identified as § 87(2)(b) to exit and he complied. PO Farley denied stating, “Open the fucking door,” or using any profanity or hearing any other officer use profanity. PO Farley denied throwing § 87(2)(b) onto the ground. PO Farley frisked around § 87(2)(b)’s waistband to determine whether he had any weapons; however, he denied searching § 87(2)(b). PO Farley requested § 87(2)(b)’s identification and he provided it to him. PO Farley did not recall whether he used information obtained from identification or directly from § 87(2)(b) to prepare the stop, question and frisk report he prepared in connection with the incident.

PO Farley could not provide any detail as to what occurred with the other passenger(s). PO Farley denied seeing any passenger slammed onto the ground. PO Farley did not recall whether any officers at the location searched the vehicle; he observed unidentified officers look into the vehicle with flashlights. PO Farley did not search the vehicle. PO Farley did not observe any damage to the vehicle. No contraband was located at the location.

Subject Officer: PO BRIAN FALLER

- *PO Brian Faller is a § 87(2)(b) old white male, § 87(2)(b) with brown hair and blue eyes. On May 23, 2010, PO Faller worked in uniform with PO Farley assigned to sector patrol from 3:00 p.m. until 11:35 p.m. in marked patrol car 1706. PO Faller was the operator.*

Memo Book

PO Faller's memo book entries indicate that at 9:30 p.m. he responded to a report of four males inside of a black BMW with a firearm. At 9:40 p.m., PO Farley prepared stop, question and frisk reports for criminal possession of a weapon (encl. 19A-C).

CCRB Testimony

On January 4, 2011, PO Faller was interviewed at the CCRB (encl. 20A-B). On May 23, 2010, at approximately 9:30 p.m., Officers Faller and Farley were the first officers to arrive at the location. PO Faller exited his patrol car and pointed his firearm at the ground out of fear for his safety. PO Faller approached the passenger's side of the BMW and stated, "Let me see your hands," to an individual identified as § 87(2)(b). PO Faller denied using or hearing any discourteous language or threatening to break the door. § 87(2)(b) opened the door. PO Faller denied slamming § 87(2)(b) onto the ground. PO Faller frisked § 87(2)(b) entire body; the frisk produced negative results for a firearm.

PO Faller did not recall whether PO Tarver had been at the location; however, PO Faller was the only officer that interacted with § 87(2)(b). PO Faller denied searching § 87(2)(b) pockets or removing his wallet from his pants and he did not observe any other officer do so. PO Faller remained with § 87(2)(b) for approximately five to ten minutes while approximately three officers searched the vehicle. PO Faller viewed copies of the photographs that depict the alleged damage; however, he did not view any damage to the vehicle at the time of the incident.

Subject Officer: PO RICHARD TARVER

- *PO Richard Tarver is a § 87(2)(b) old black male, § 87(2)(b), with black hair and brown eyes. On May 23, 2010, PO Tarver worked in uniform from 4:00 p.m. until 11:59 p.m. with PO Anil Jacob assigned to sector patrol in a marked patrol car.*

Memo Book

PO Tarver's memo book entries indicate that at 9:25 p.m., he stopped one male, § 87(2)(b) in response to a reported "possible crime" involving a firearm at § 87(2)(b) (encl. 21A-B).

Stop, Question and Frisk Report

The stop, question and frisk report indicates that that PO Tarver stopped § 87(2)(b) because he fit a provided description and made furtive movements. The report indicates that § 87(2)(b) was frisked and searched (encl. 22A-B).

CCRB Testimony

On January 3, 2011, PO Tarver was interviewed at the CCRB (encl. 23A-B). On May 23, 2010, at approximately 9:30 p.m., PO Tarver and PO Jacob responded to a report of a gun and encountered § 87(2)(b) and § 87(2)(b) with PO Farley and PO Faller. PO Tarver exited his vehicle and said, "Get out of the car [with your] hands up," approximately two times. PO Tarver denied stating, "Get out of the fucking car," or using discourteous language and he did not hear any other officer use profanity. PO Tarver pointed his firearm at the vehicle for his safety. § 87(2)(b) and § 87(2)(b) exited of their own volition and § 87(2)(b) got down on the ground.

PO Tarver informed § 87(2)(b) that they received a report of the vehicle containing a gun and placed § 87(2)(b) in handcuffs. PO Tarver frisked § 87(2)(b) waist for a weapon and it produced negative results. PO Tarver removed § 87(2)(b) wallet from his pants' back pocket in order to obtain § 87(2)(b) identification because he wanted to prepare a stop, question and frisk report. PO Tarver did not recall whether the wallet had been in the left or right pocket. PO Tarver did not have any sort of conversation with § 87(2)(b) however, § 87(2)(b) did not resist verbally or otherwise. PO Tarver located § 87(2)(b) identification in the wallet and he noted his name in his memo book.

PO Tarver denied searching the vehicle and he did not recall which officers conducted the search or whether the trunk had been searched. He did not see any damage to the vehicle.

Subject Officer: SGT JUDE REIMBEAU

- *Sgt. Reimbeau is a § 87(2)(b) old black male, § 87(2)(b), with long black hair and brown eyes. On May 23, 2010, Sgt. Reimbeau worked in uniform from 2:50 p.m. until 11:47 p.m. with PO Dayn Johnson. He was assigned to marked patrol car 3001.*

Memo Book

Sgt. Reimbeau's memo book entries indicated that at 9:30 p.m. he responded to § 87(2)(b) in response to a report of two black males in a black BMW with a gun (encl. 24).

CCRB Testimony

On September 23, 2010, Sgt. Jude Reimbeau was interviewed at the CCRB (encl. 25A-B). On May 23, 2010, at approximately 9:30 p.m., Sgt. Reimbeau responded to a report of a firearm. PO Johnson pulled their marked patrol car in behind the vehicle that was already stopped by PO Farley and PO Faller. Sgt. Reimbeau denied pointing his gun and he did not observe any other officer point their gun at the vehicle or any officer with their gun drawn and he did not use or hear any profanity used. Sgt. Reimbeau approached the passenger side and observed the passenger move his right arm up over his head and place it behind him towards the back seat.

Sgt. Reimbeau denied pulling § 87(2)(b) or § 87(2)(b) from the vehicle and he did not see any other officer use force to remove them. Sgt. Reimbeau frisked § 87(2)(b) and § 87(2)(b) and he did not find any contraband. Sgt. Reimbeau did not observe any officer search § 87(2)(b) or § 87(2)(b). Sgt. Reimbeau searched the vehicle for a weapon based upon the 911 report and the furtive movement made by § 87(2)(b). Sgt. Reimbeau, PO Farley and PO Faller searched the driver's side and rear seats of the vehicle; he did not recall searching the trunk. The search yielded negative results and a stop, question and frisk report was prepared for § 87(2)(b) and § 87(2)(b).

Sgt. Reimbeau received a call from the 911 dispatcher reporting that § 87(2)(b) alleged property damage and he returned to the location within approximately two minutes to interview him. § 87(2)(f)

§ 87(2)(b) Sgt. Reimbeau also spoke with § 87(2)(b) who alleged that his vehicle had been damaged. Sgt. Reimbeau informed him that § 87(2)(b) alleged that there had been a gun in the vehicle. The vehicle was in the same spot and Sgt. Reimbeau did not observe any damage to it. Sgt. Reimbeau viewed copies of the photographs provided to the CCRB by § 87(2)(b) § 87(2)(b). Sgt. Reimbeau denied lifting the seat, ripping the mat and steering wheel, or scratching the gas tank during the vehicle search as shown in the photographs.

Witness Officer: PO DAYN JOHNSON

- PO Dayn Johnson is a § 87(2)(b) old black male, § 87(2)(b), with black hair and brown eyes. On May 23, 2010, PO Johnson worked in uniform from 4:00 p.m. until 11:59 p.m. with Sgt. Jude Reimbeau assigned as the sergeant's operator. He was assigned to marked patrol car 3001.

Memo Book

PO Johnson's memo book entries indicate that at 9:30 p.m. he responded to a dispute with a firearm at § 87(2)(b) § 87(2)(b). At 10:05 p.m. two stop, question and frisk reports were prepared (encl. 26A-B).

CCRB Testimony

PO Dayn Johnson was interviewed at the CCRB on January 3, 2010 (encl. 27A-B). On May 23, 2010, at approximately 9:30 p.m., PO Johnson and Sgt. Reimbeau responded to the location and encountered § 87(2)(b) and § 87(2)(b) in handcuffs outside of their vehicle. PO Johnson did not recall whether they were standing or on the ground. Sgt. Reimbeau walked around to assess the situation; however, PO Johnson remained standing by their patrol car parked three lengths away. PO Johnson could not determine the condition of the vehicle. An unknown number of officers searched the vehicle for firearms; PO Tarver searched the vehicle on the passenger's side in the rear seat area. PO Johnson did not see PO Tarver search the front seat, driver's side or trunk.

Officers Not Interviewed

§ 87(2)(g)

NYPD Document(s)

SPRINT § 87(2)(b) /Communication CD

§ 87(2)(f)

§ 87(2)(b) Officers from the 105th Precinct responded to the location and determined that the reported incident was unfounded (encl. 28A-B).

Roll Call

The 105th Precinct roll call tour 3 indicates that Sgt. Reimbeau, PO Farley, PO Faller, PO Tarver and PO Johnson were working on the date and time of the incident (encl. 29A-C).

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of January 4, 2011 with regard to the incident (encl. 30).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) and it is the first CCRB complaint involving § 87(2)(b) and § 87(2)(b) (encl. 5A-C).

Subject Officer(s) CCRB History

- Sgt. Reimbeau has been a member of the service for 11 years and there are no substantiated CCRB allegations against him (encl. 4A)
- PO Farley has been a member of the service for 4 years and there are no substantiated CCRB allegations against him (encl. 4B).
- PO Faller has been a member of the service for 4 years and there are no substantiated CCRB allegations against him (encl. 4C).
- PO Tarver has been a member of the service for 4 years and there are no substantiated CCRB allegations against him (encl. 4D).

Conclusion

Identification of Subject Officer(s)

PO Farley prepared a stop, question and frisk report for § 87(2)(b) PO Farley's testimony acknowledged his interaction with § 87(2)(b) § 87(2)(g) PO Faller was identified through police officer documentation and testimony and his own testimony acknowledged his interaction with § 87(2)(b) § 87(2)(g) PO Tarver prepared a stop, question and frisk report for § 87(2)(b) and his testimony acknowledged his interaction with § 87(2)(b) § 87(2)(g) Sgt. Reimbeau was identified by § 87(2)(b) by name and he acknowledged his interaction with § 87(2)(b) and responsibilities during the encounter § 87(2)(g).

Investigative Findings and Recommendations

Allegation A – Force: PO George Farley pointed his gun at § 87(2)(b) and § 87(2)(b)

Allegation B – Force: PO Brian Faller pointed his gun at § 87(2)(b) and § 87(2)(b)

Allegation C – Force: PO Richard Tarver pointed his gun at § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged that multiple officers pointed their guns at § 87(2)(b) and § 87(2)(b) while they were seated inside of § 87(2)(b)'s vehicle. According to OATH index no. 95500, PD. v. Gliner (Sept. 2000), explains that an officer is entitled to draw his weapon when “he has reasonable fear for his own or another person’s safety” (encl. 1A-U).

§ 87(2)(g)

§ 87(2)(g)

therefore, it is recommended that **Allegations A, B and C** be **exonerated**.

Allegation D – Discourtesy: PO George Farley spoke obscenely and/or rudely to § 87(2)(b)

Allegation E – Discourtesy: PO Brian Faller spoke obscenely and/or rudely to § 87(2)(b)
and § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged that PO Farley and PO Faller used discourtesy language stating something to the effect of, “Open the fucking [window or] door.” PO Farley and PO Faller denied making any discourteous statements and their testimony was corroborated by PO Tarver, who arrived at the location around the same time. § 87(2)(g)

, it is recommended that **Allegation D** and **E** be **unsubstantiated**.

Allegation F – Force: PO George Farley used physical force against § 87(2)(b)

Allegation G – Force: PO Brian Faller used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Farley grabbed him by the arm and threw him to the ground; he did not sustain any injury from the action. § 87(2)(b) did not corroborate § 87(2)(b)'s testimony. PO Farley denied throwing § 87(2)(b) to the ground and his testimony was corroborated by Sgt. Reimbeau; PO Tarver and PO Faller stated they did not observe what occurred on the driver's side of the vehicle.

§ 87(2)(b) alleged that PO Faller grabbed § 87(2)(b) out of the vehicle and threw him onto the ground. § 87(2)(b) stated § 87(2)(b) did not appear to have been injured by the action. PO Faller testified to placing § 87(2)(b) onto the ground to lay down but denied slamming him on the ground. § 87(2)(g)

Therefore, it is recommended that **Allegations F** and **G** be **exonerated**.

Allegation H – Abuse: PO George Farley searched § 87(2)(b)

§ 87(2)(b) alleged PO Farley searched his pockets and removed his wallet. PO Farley denied doing so and prepared a stop, question and frisk report which indicated that § 87(2)(b) had been searched, but not frisked. PO Farley did not recall how he obtained § 87(2)(b)'s identifying information used to prepare the report. Sgt. Reimbeau testified to frisking § 87(2)(b) however, he denied conducting a search and he did not observe any other officer search § 87(2)(b) § 87(2)(g)

; therefore, it is recommended that **Allegation H** be **unsubstantiated**.

Allegation I – Abuse: PO Richard Tarver searched § 87(2)(b)

It is undisputed that § 87(2)(b) was searched by an officer at the location. PO Tarver admitted searching § 87(2)(b)

In order to search a person, absent a search warrant or consent, “an officer must have probable cause to believe that said person has committed a crime or is armed with a weapon” NYPD v. Lynch, DCT #80356/04 (2005) (encl. 3A-K). An officer is prohibited from searching an individual for the purpose of identifying that person.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]; therefore, it is recommended that **Allegation I** be **substantiated**.

Allegation J – Abuse: Sgt. Jude Reimbeau authorized the search of the car in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that officers searched a black BMW in which § 87(2)(b) and § 87(2)(b) were occupants in front of § 87(2)(b) in Queens. Under the automobile exception, the police may search a vehicle and any containers found inside when they have probable cause to believe that it contains contraband. Kamins, New York Search & Seizure, p. 4-38 (2010 ed.) (encl. 3A-B). § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. Therefore, it is recommended that **Allegation J** be **exonerated**.

Allegation K – Abuse: Sgt. Jude Reimbeau damaged § 87(2)(b)'s property.

§ 87(2)(b) alleged that the officers searched his vehicle and in the process damaged his back seat, ripped his mats and scratched his steering wheel and back panel of the car near the gas trunk. § 87(2)(b) provided the CCRB with photograph of the damage; however, he did not have any photographs depicting the condition of the vehicle prior to the incident. Sgt. Reimbeau stated that § 87(2)(b) complained at the location that damage had been done to his vehicle; however, Sgt. Reimbeau denied observing any damage at the time and his statement was corroborated by PO Farley, Faller and Tarver. Upon viewing the photographs provided to the CCRB by § 87(2)(b) § 87(2)(b) Sgt. Reimbeau stated the car was not in that condition at the time and place of occurrence and his statement was corroborated by PO Farley, PO Faller and PO Tarver. PO Johnson stated he was never close enough to the vehicle to observe the condition § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]. Therefore, it is recommended that **Allegation K** be **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date